

Jurisdiction Selection Clause Template - United States (Delaware)

Comprehensive enterprise drafting template for governing law, venue, and dispute routing.

1. Purpose and Use

This template is a full drafting baseline for master service agreements and statements of work. It is designed for enterprise procurement, regulated workloads, and cross-border delivery models. Replace bracketed fields and align with commercial schedules before signature.

2. Governing Law and Jurisdiction Clause

Governing Law and Jurisdiction. This Agreement, including any non-contractual obligations, is governed by the laws of [Jurisdiction], excluding conflict-of-law principles. Subject to Section 3 (Arbitration Option), courts located in [Venue] have exclusive jurisdiction over disputes arising out of or in connection with this Agreement.

3. Arbitration Option

Any dispute, controversy, or claim arising out of or in connection with this Agreement will be finally resolved by arbitration under [Arbitration Rules]. The seat is [Seat], language is English, and tribunal consists of [one/three] arbitrator(s). The award is final and binding and may be enforced in any court of competent jurisdiction.

4. Pre-Dispute Escalation and Cure Process

Before initiating formal proceedings, parties must escalate the dispute to designated commercial and legal contacts and participate in a good-faith resolution process for [30] days, unless urgent interim relief is required.

5. Interim and Injunctive Relief

Nothing in this clause prevents either party from seeking urgent interim, injunctive, or protective relief from a court of competent jurisdiction to prevent unauthorized disclosure, misuse of confidential information, or irreparable harm to intellectual property rights.

6. Service of Process and Notices

Each party must appoint legal notice contacts in writing. Formal notices, including service of process where permitted, must be delivered under the notice mechanics in the Agreement and are effective on confirmed delivery events.

7. Class Action and Jury Trial Position (Optional)

To the extent permitted by law, parties may agree to waive jury trial rights and class or representative proceedings for contractual claims, while preserving rights that cannot be waived under mandatory law.

8. Mandatory Law Savings

If mandatory law in any applicable jurisdiction overrides part of this clause, only the non-compliant portion will be adjusted to the minimum extent required, and the remainder of this clause will continue in full force.

9. Enforcement and Survival

Dispute, governing law, confidentiality, limitation of liability, intellectual property, and payment obligations survive expiration or termination to the extent required for enforcement and legal closure.

10. Drafting Checklist

- Confirm enforceability with local counsel.
- Align with liability caps, indemnity scope, and limitation language.
- Confirm arbitration, court venue, or hybrid enforcement model.
- Verify entity naming, affiliate coverage, and parent guarantees.
- Ensure consistency with data transfer and privacy appendices.

11. Jurisdiction-Specific Guidance

US (Delaware) Addendum: Confirm Delaware venue strategy (state/federal), arbitration enforceability under FAA, class action waiver compatibility, and emergency relief carve-outs.

12. Optional Enterprise Clause Pack

Include aligned clauses for confidentiality survival, liability cap mechanics, indemnity trigger standards, force majeure, sanctions compliance, and audit rights where contract model requires.

13. Legal Validation

This template is not legal advice. Final language must be validated by qualified legal counsel before execution.